15/03/2021

EXECUTION VERSION

GASI 2444 28 2021

AMENDMENT AND AGREEMENT

THIS AMENDMENT AND AGREEMENT (this "**Agreement**") is entered into as of 19 December, 2019 (the "**Effective Date**"), by and among:

1. SolarAfrica (the "**Developer**") with its branch registered in Ghana under entity name, NVI Energy (Mauritius) Ltd, having its registered address at Clo Kimathi & Partners, No. 6, Airport Residential Area, Accra, Greater Accra, Ghana, P.O. BOX CT.6217; and
2. Guinness Ghana Breweries PLC (the "**Customer**") a limited liability company incorporated in Ghana, bearing Registration Number CS0064 72016, formerly known as Guinness Ghana Breweries Ltd, having its registered address at Achimota, Accra, Greater Accra, Ghana;
3. CrossBoundary Energy Holdings (Ghana) ("**CBEH**") with its branch registered in Ghana and having its registered address at C/o Kimathi & Partners, No. 6, Airport Residential Area, Accra, Greater Accra, Ghana, P.O. BOX CT.6217, and
4. CrossBoundary Energy Ghana Limited ("**CBE Ghana**" or the "**System Owner**"), incorporated under the laws of Ghana, with registration number CS137952018 and registered address at c/o ENSAfrica, 31 Ringway Estates, Asafoanye o Broni, Accra, Greater Accra, Ghana

Hereinafter referred individually as each a "**Party**" and together, the "**Parties**."

RECITALS

A. Developer, Customer and CBEH entered into a Solar Services Agreement dated on or about 1 April, 2018 [illegible] with the design, construction and operation of a photovoltaic electricity generation system (the "**Facility**") [illegible] benefit of the Customer (the "**SSA**");

B. Regulatory changes in Ghana have resulted in a delay of the start of construction of the Facility and have required a change of the owner of the Facility, which the Parties seek to acknowledge and agree.

C. In addition, the Parties seek to acknowledge and agree to the transfer of the Developer's rights, responsibilities, obligations and interest under and in the SSA to the System Owner earlier than previously anticipated.

NOW, THEREFORE, in consideration of the premises set forth above and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

1. **Definitions**. Unless otherwise defined in this Agreement, capitalized terms used in this Agreement have the respective meanings ascribed to them in the SSA.

2. **Agreements**. Notwithstanding anything to the contrary in the SSA, and effective as of the Effective Date, the Parties hereby acknowledge and agree as follows:

   2.1. Change in System Owner. All rights, responsibilities, obligations and interest of CBEH under and in the SSA shall be transferred by assignment to, and, are assumed and accepted by, CBE Ghana, which shall be treated as if it had been the "System Owner" since the Effective Date as defined under the SSA, and CBEH shall be fully released from any and all obligations and liabilities under and in connection with the SSA. Customer shall be fully released from any and all liabilities or claims CBEH may have against the Customer in respect of the SSA.

   2.2. Transfer of Developer's Rights and Obligations. Immediately thereafter, all rights, responsibilities and interest of the Developer under and in the SSA shall be transferred to and assumed by the System Owner from the Effective Date of this Agreement for the remainder of the Term of the SSA, and the Developer shall have no further rights, responsibilities or obligations under the SSA.

   2.3. Anticipated Commercial Operation Date. The Anticipated Commercial Operation Date is hereby amended to be 250 days after the Effective Date.

   2.4. Notice Address. Notices to the System Owner and Developer from this point forward shall be sent to CrossBoundary Energy Ghana Limited, Attn: Managing Director & General Counsel, c/o ENSAfrica, 31 Ringway Estates, Asafoanye

o Broni, Accra, Greater Accra, Ghana; emails: matt.tilleard@crossboundary.com & energynotices@crossboundary.com.

3. **No Other Modification to SSA**. Other than the amendment, assignments, consents and acknowledgments described in this Agreement, nothing in this Agreement is intended to modify, alter or rescind any of the terms or provisions of the SSA.

4. **Miscellaneous**. This Agreement shall be governed by the laws of the jurisdiction set forth in the SSA, without regard to principles of conflicts of law. The dispute resolution provisions set forth in the SSA shall apply to this Agreement. This Agreement shall inure to the benefit of and be binding upon each of the Parties and each of their respective successors and assigns. This Agreement may only be amended by a writing signed by all of the Parties. This Agreement may be executed in counterparts, each of which is deemed an original, but all of which constitute one and the same agreement. Delivery of an executed counterpart of this Agreement electronically or by facsimile shall be effective as delivery of an original executed counterpart of this Agreement. This Agreement constitutes the entire agreement of the Parties relating to the subject matter hereof and supersedes all prior contracts, agreements or understandings with respect to the subject matter hereof, whether oral or written.

IN WITNESS WHEREOF, the Parties have each executed this Agreement as of the Effective Date.

GUINNESS GHANA BREWERIES PLC

By: _____

Name: TEYE AKUCHI

Title: FINANCE DIRECTOR

Date: 19 DECEMBER 2019

NVI ENERGY (MAURITIUS) LTD

By: _____

Name: Charl Alheit

Title: Director

Date: 23 January 2020

CROSSBOUNDARY ENERGY HOLDINGS (GHANA)

By: _____

Name: Jacob Cusack

Title: Director

Date: 7 Jan 2020

CROSSBOUNDARY ENERGY GHANA LIMITED

By:_____

Name: MATTHEW TILLEARD

Title: DIRECTOR

Date: 23 JANUARY 2020

0223838 — 09/03/2021

IN ACCORDANCE WITH SECTION 10 OF THE STAMP ACT 2005, I CERTIFY THAT IN MY OPINION THIS INSTRUMENT IS CHARGEABLE WITH A STAMP DUTY OF

GH ¢ 2.00 (Two Ghana Cedis)

ACCRA 2021-02-18

Commissioner of Income Tax

COMMISSIONER OF INCOME TAX
REPUBLIC OF GHANA

LAND VALUATION DIVISION
RECEIVED
DATE 29/01/2021
P. O. BOX CT 794, ACCRA

NATURE OF FEES	PAID	RECEIPT No.	DATE
PROCESSING FEE	GH¢ 45.00	LVD 101105 632021	25/01/2021